Privacy and access policy

Policy statement

Bow Valley College is a public body under the Post-Secondary Learning Act, Alberta. Therefore, its collection, use, disclosure, and protection of personal information is governed by the *Freedom of Information and Protection of Privacy Act (Alberta)* ("*FOIPP Act*"). The college is also required to provide the public with access to records in its custody and control in accordance with the provisions of the FOIPP Act.

Purpose

The purpose of this policy is to ensure that actions by members of the college community are consistent and lawful with regard to the collection, use, disclosure and protection of personal information under the custody and control of the college, and records created or generated during the course of college operations.

Scope

This policy applies to all college community members including the Bow Valley College Board of Governors, executive management, employees, contractors and learners.

The Executive Team member responsible for Corporate Services & CIO, with support from the Access and Privacy Officer/FOIP Coordinator, is responsible for meeting the privacy and access obligations outlined in the FOIPP Act.

Principal objectives

1. The mandate of the college necessitates the collection, use, disclosure, retention, and disposition of personal information of learners, employees, alumni, volunteers, retirees and other individuals. In accordance with the terms of this policy, the FOIPP Act and any applicable laws. The college will take appropriate physical, technical, and administrative measures to ensure the confidentiality of personal information that is in its custody or under its control.
2. The college will act in an accountable and transparent manner when responding to requests for records and personal information. Access requests will be viewed objectively in terms of the college's obligations to the public and under the FOIPP Act.
3. The college's commitment to complying with the FOIPP Act in the conduct of its operations and programs will be achieved by adhering to this Policy and associated procedures.
4. The college has a Access and Privacy Officer/FOIP Coordinator who is responsible for managing its access and privacy responsibilities. They can answer questions and arrange for access to the college's records.

Compliance

Employees, contractors, and learners are responsible for knowing, understanding, and complying with Bow Valley College policies, procedures, and any other attached documentation that relate to their position, employment, or enrolment at the college.

Classification: General

Definitions

Personal information:
As defined by the FOIPP Act means recorded information about an identifiable individual, including:

i) The individual's name, home or business address or home or business telephone number,
ii) The individual's race, national or ethnic origin, colour or religious or political beliefs or associations,
iii) The individual's age, sex, marital status or family status,
iv) An identifying number, symbol or other particular assigned to the individual,
v) The individual's fingerprints, other biometric information, blood type, genetic information or inheritable characteristics,
vi) Information about the individual's health and health care history, including information about a physical or mental disability,
vii) Information about the individual's educational, financial, employment or criminal history, including criminal records where a pardon has been given,
viii) Anyone else's opinions about the individual, and
ix) The individual's personal views or opinions, except if they are about someone else.

Classification: General

Data sheet

Accountable officer
Executive Team member responsible for Corporate Services & CIO

Responsible officer
Associate Director, ITS Security

Approval
President and CEO

Contact area
ITS Security

Relevant dates

Approved	Board of Governors: BOG200618-04
Effective	June 18, 2020
Next review	November 2025
Modification history	June 19, 2023 • Rebranded 2021 • Housekeeping changes October 2023 • Housekeeping changes October 2024
Verified by	Office of the President, October 2024

Associated policies
Information Management Policy, #300-2-9
Records Management Policy, #200-1-8

Directly related procedure
Privacy and Access Procedure, #300-2-10

Related legislation
Alberta Freedom of Information and Protection of Privacy Act, 2000
Alberta Freedom of Information and Protection of Privacy Regulation, 2008
Alberta Health Information Act, 2000
Alberta Post-Secondary Learning Act, 2003

Classification: General